

Before You Fight About AI Data Centers, Clear the Ledger

We are not asking whether AI is good or bad first. We are asking who pays if the forecast fails.

Public review tool

Use this to ask better hearing questions. It is not legal advice. The full legal and evidentiary caveat belongs in the annotated brief, toolkit, and jurisdiction memos.

The whole method in three lines

Promise is not payment. Growth is not settlement. A public bill needs a named payer.

Five questions to ask at the next hearing

1. What is being built for this project, and who will own it?

2. Which legal entity promises to pay: project company, affiliate, parent, utility, county, water authority, or ratepayers?

3. What happens if the project reaches only 60 percent of expected load?

4. What happens if the project exits in year five?

5. Who pays if the contract, guarantee, or flexibility claim fails?

Three common traps

• Press release is not contract.

• Tax revenue is not electric-bill protection.

• PJM market pathway is not project bill.

What would make opponents lose fairly?	What would make supporters lose fairly?
Cost-to-serve surplus survives a 60 percent load stress. Direct and shared network costs have enforceable instruments. Regional capacity exposure is assigned or offset.	Legal payer is unclear or thinly capitalized. Minimum bills do not cover fixed-cost exposure.
Water, school, road, and public-safety burdens are covered. Public counsel or staff can review confidential terms.	Exit fee and collateral fall short of remaining net book value. PJM/RTO exposure has no assignment mechanism. Local fiscal claims omit water, schools, roads, or emergency services.
No material residual claimant remains unnamed.	Parent guarantee covers only direct bills, not shared obligations.

Ask for five documents

1. Service agreement or tariff schedule.

2. Cost-to-serve or cost-allocation study.

3. Collateral, parent guarantee, minimum-bill, and exit-fee terms.

4. RTO/capacity or resource-obligation evidence.

5. Local fiscal, water, road, school, public-safety, and mitigation agreements.

If they are confidential, ask who can review them under protective order.

A 90-second public comment script

I am not asking this body to decide whether AI is good or bad tonight. I am asking whether the payment chain is clear before public balance sheets are used.

For this project, please identify the legal payer, the assets being built, the costs that are direct-assigned, the costs that are shared or regional, and the residual claimant if the forecast fails.

Please also explain what happens if the project reaches only 60 percent of expected load, exits in year five, or if the parent guarantee or flexibility claim fails.

If the contracts are confidential, please identify who can review them for the public under protective order, and provide a public summary of the payer, term, collateral, cost categories covered, and residual claimant.

No hidden ledger should become a public bill. No single clean ledger should be mistaken for a clean project.

How to read the answer

- **Pass:** every affected ledger has a same-ledger enforceable payment resource.
- **Conditional:** a gap is covered by escrow, milestone deposit, reopener, true-up, or mitigation.
- **Unresolved:** evidence is missing, confidential but not reviewable, contested, or not pinned to a document.
- **Failed under stress:** the project looks covered in the base case but leaves a public residual claimant under delay, underuse, exit, default, curtailment failure, or forecast failure.

Do not misuse this test

Unknown is not failure. One clean ledger is not a clean project. A public-welfare claim can explain why officials support a project, but payment settlement explains who pays.

Full caveat

Working release for public review and issue-spotting. Not a legal filing, expert report, or commission-ready evidentiary record.

Where the full toolkit fits

This handout is the front door. The public brief explains the argument. The technical toolkit gives the ledger test, evidence bands, stress cases, jurisdiction maps, and spreadsheet certificate. The jurisdiction memos show which institution can order, condition, request, or refer each issue.